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QUESTION 1: Law Proposed by Initiative Petition

Expanding the Public Records Law

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY ▶
As required by law, summaries are written by the State Attorney General.

This proposed law would make most records held by the Legislature and the Office of the Governor public records under the Massachusetts Public Records Law. This proposed law would exempt documents related to the development of public policy and communications between legislators and their constituents, if those communications are reasonably related to a constituent's request for assistance in obtaining government-provided benefits or services or interacting with a government agency.

WHAT YOUR VOTE WILL DO ▶
As required by law, the statements describing the effect of a "yes" or "no" vote are written jointly by the State Attorney General and the Secretary of the Commonwealth.

A YES VOTE would make most records held by the Legislature and the Office of the Governor public records under the Massachusetts Public Records Law.

A NO VOTE would make no change to the Massachusetts Public Records Law.

STATEMENT OF FISCAL CONSEQUENCES ▶
As required by law, statements of fiscal consequences are written by the Executive Office of Administration and Finance.

The proposed law has no discernible material fiscal consequences for state and municipal government finances.

ARGUMENTS ▶
As provided by law, the 150-word arguments are written by proponents and opponents of each question, and reflect their opinions. **The Commonwealth of Massachusetts does not endorse these arguments, and does not certify the truth or accuracy of any statement made in these arguments**. The names of the individuals and organizations who wrote each argument, and any written comments by others about each argument, are on file in the Office of the Secretary of the Commonwealth.

IN FAVOR:

Massachusetts deserves open government. Good government groups rank our state the least transparent in the nation. We're one of only two states where both the Governor's office and the Legislature claim a blanket exemption from the public records law. Every city, town, and state agency must follow that law, but the politicians on Beacon Hill exempted themselves.

Question 1 puts the Legislature and the Governor's office under the same public records law as everyone else. It protects constituent privacy, and the Secretary of Administration and Finance certified that it has no cost to taxpayers.

In 2024, 72% of voters said yes to auditing the Legislature. Beacon Hill is still fighting that vote — but Question 1 will give you and every taxpayer the ability to access public records directly.

You have a right to see what your government is doing with your hard-earned taxpayer dollars. Please vote YES on Question 1.

Authored by:
Diana DiZoglio
Committee for Transparency and Democracy
16 Rosewood Ave.
Ayer, MA 01432
978-984-7747
www.dianaforma.com/ballot

ARGUMENTS ▶ (continued)

AGAINST:

As of the printing of this book, there was no organized group urging a "No" vote on Question 1. The information below has been compiled by the Office of the Secretary of the Commonwealth, in part from arguments presented in the Legislature's Majority Report. The argument below does not reflect the opinions of the Office of the Secretary of the Commonwealth.

The proposed law includes overly broad and poorly defined exemptions. It would exempt from public disclosure documents related to the development of public policy, but only during policy development. These records would become public once the policy is developed. This limited and temporary exemption will chill open communications by lawmakers, raising significant constitutional concerns, particularly around legislative speech and debate protections.

The narrow protection for constituent communications creates serious privacy risks. By only exempting correspondence tied to benefits or agency interaction, the law leaves vulnerable to public disclosure all other general constituent communications, such as emails and letters from citizens expressing personal political views, sharing sensitive local grievances, or criticizing lawmakers. This lack of comprehensive privacy protection will negatively affect civic engagement and deter residents from contacting their elected officials.

Ultimately, this measure creates a flawed framework that fails to deliver genuine accountability while actively compromising constituent privacy.

Authored by:
"If no argument is received by the secretary from the principal proponents or opponents of a measure within the time allowed by this section, the secretary shall prepare such argument."
– M.G.L. c. 54 § 54.

Legislative Reports

The following reports were written by members of the Legislature's Special Joint Committee on Initiative Petitions. The Massachusetts Constitution allows the Legislature to include these reports in this book. ***Statements made in this report do not reflect the opinions of the Office of the Secretary of the Commonwealth.***

QUESTION 1: Majority Report

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on Initiative Petition 25-14, House 5004, *Initiative Petition for a Law to Improve Access to Public Records,* on March 3, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts, proponents and opponents of the Petition, as well as members of the public. The full hearing record and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5590.

On May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions ("the Committee") voted to recommend that the General Court **take no action** on Initiative Petition 25-14, House 5004**,** *Initiative Petition for a Law to Improve Access to Public Records ("the Petition").*

This Petition intends to subject the Governor's office and the Legislature to the public records law under chapters 4 and 66 of the Massachusetts General Laws. The Committee notes that while the Petition would provide two new exemptions to the public records law beyond what currently exists in chapter 4, it was pointed out at the legislative hearing that those additional exemptions may be less helpful than the proponents believe them to be. The proponents stated at the hearing that they offered the new exemptions to avoid legal concerns related to disclosing constituent correspondence and policy development records to the public. However, the new exemption for constituent communications is too narrow to address those legal concerns. The proposed new exemption related to constituent communications covers only specific requests from constituents to legislators for assistance in obtaining government-provided benefits or services or otherwise interacting with a state or federal agency. The new exemption would not cover communications involving constituents who are seeking connection to services that are not run by the state or federal government, such as services provided by a hospital or non-profit organizations. The proposed exemption also would not prevent the disclosure of communications from constituents relating to advocacy for or against specific legislation; that limitation could hinder an individual's desire to communicate with legislators and suppress their right to petition their government.

With respect to the proposed exemption for records relating to developing policy positions, the proponents made clear at the hearing that the exemption is intended to cover only communications during policy development, and any such exemption expires once the policy is developed. Such an exemption is limited and temporary, and it will chill open communications by lawmakers in a manner that raises significant constitutional concerns, particularly around legislative speech and debate protections.

Contrary to assertions made by proponents, the Committee notes that the legislative process in the Commonwealth is already structured to be publicly accessible. All hearings are conducted in open public sessions, and testimony is accepted from members of the public, advocacy organizations, subject matter experts, and government officials. Legislative sessions, hearings, and committee meetings are publicly noticed and open to the public, and many are live-streamed and archived for later viewing.

In addition, the Massachusetts Legislature provides multiple avenues for public engagement. Bills, amendments, and roll-call votes are published online, enabling residents to track legislation and review how their elected representatives vote. Committee calendars, reports, votes, and related documents are also made publicly available, allowing constituents to follow the progress of legislation through the committee process. These mechanisms collectively ensure a high degree of visibility into the legislative process and opportunities for public participation.

Also, the Committee concludes that the proposed changes may impose substantial administrative burdens on the state, both for compliance and enforcement. State entities would likely need to reallocate staff resources, develop new

QUESTION 1: Majority Report (continued)

compliance protocols, and potentially modify existing records management systems in order to meet the requirements of the Petition. These operational demands could divert resources away from other core governmental functions.

In reaching this determination, the Committee reviewed the language and intent of the proposed measure, as well as testimony and evidence presented during the public hearing, which is available on the Committee's website. The Committee recognizes the importance of public access to government records; however, it has significant concerns regarding the Petition's potential operational, legal, and fiscal impacts.

Based on testimony by the experts and from the opponents, the Committee believes that this Petition violates the separation of powers mandated by the Massachusetts Constitution. This Petition would, through law, require the Secretary of the Commonwealth — an officer of the executive branch — to enforce this law against the Senate and House of Representatives in the legislative branch. This would violate the Massachusetts Constitution as it would provide the executive branch with supervisory authority over the legislative branch; such a dramatic shift in authority between the branches of Massachusetts government can only be accomplished through a constitutional amendment, not a new statute.

The Committee knows that the members of the Legislature have a shared commitment to increasing public access to the Legislature, and we look forward to helping increase accessibility through means that avoid the constitutional pitfalls of the present Petition.

It is important to note that Article 48 of the Amendments to the Massachusetts Constitution, which governs the initiative petition process, requires the Attorney General to provide initial certification of initiative petitions that meet the specific and limited requirements listed in Article 48. In making a decision on whether to initially certify an initiative petition, the Attorney General does not evaluate a petition's broader constitutionality; her certification decision is limited only to the narrow criteria listed in Article 48. Thus, this Petition has been certified by the Attorney General under Article 48, but it has not been evaluated by her or the courts for its constitutionality at this time. Nevertheless, the Justices of the Supreme Judicial Court in an advisory opinion issued on April 27, 2026, stated that the Initiative Petition may raise several significant constitutional questions (including whether the Initiative Petition violates the separation of powers), and the Justices reserved consideration of those constitutional concerns for another occasion.

As the Legislature cannot amend this proposal, a majority of the Committee recommends that the General Court **take no action** on Initiative Petition 25-14, House 5004, *Initiative Petition for a Law to Improve Access to Public Records.*

Senators.	**Representatives.**
Cindy F. Friedman	Alice Hanlon Peisch
Brendan P. Crighton	Kate Hogan
Paul R. Feeney	Frank A. Moran
	Michael S. Day
	David T. Vieira

QUESTION 1: Minority Report

Relative to Improving Access to Public Records

The Legislature has a fundamental responsibility to operate with openness and integrity, and adopting this initiative is a critical step toward fulfilling that obligation. Every executive branch agency and department in the Commonwealth, along with municipal government entities, are required to comply with the public records law, ensuring that residents have access to information about how their government functions. The public entrusts elected officials with significant authority, and with that authority comes the expectation of transparency, accountability, and accessibility. Strengthening public records access would align the Legislature with the practices already adhered to by other state entities. Transparency is not a burden, it is a core feature of good governance, and one that residents should never be denied.

For these reasons, the minority of the Committee recommends that the General Court adopt Initiative Petition 25 14, House 5004, *Initiative Petition for a Law to Improve Access to Public Records*.

Senator.

Ryan C. Fattman

Full Texts

QUESTION 1: Full Text of Proposed Law

An Act to improve access to public records.

Be it enacted by the People, and by their authority;

SECTION 1. The first paragraph of Clause Twenty-Sixth of Section 7 of Chapter 4 of the General Laws is hereby amended by inserting after the words “chapter 32” the following phrase “or by the general court, or by the office of the governor of the commonwealth,”.

SECTION 2. Said Clause Twenty-Sixth of Section 7 of Chapter 4 of the General Laws is hereby further amended by inserting the following new subparagraphs following subparagraph (v):-

(w) communications between a member of the general court, or such member’s employee, agent, or representative, and any constituent of such member; provided, however, that the communications reasonably relate to a constituent’s request for assistance in obtaining government-provided benefits or services or otherwise interacting with a state or federal agency.

(x) communications, memoranda, drafts or other documents relating to developing policy positions of members of the general court or the governor of the commonwealth.

SECTION 3. The third sentence of the first paragraph of Section 6A of Chapter 66 of the General Laws is hereby amended by striking said third sentence and inserting in place thereof the following:-

For the purposes of this chapter the term “agency” shall mean any entity, other than a municipality, that is identified in clause twenty-sixth of section 7 of chapter 4 as possessing “public records,” as defined therein, including the general court and the office of the governor of the commonwealth.

SECTION 4. Section 18 of Chapter 66 of the General Laws is hereby amended by striking said Section 18 and inserting in place thereof the following:-

Section 18. Declarations, affidavits and other papers filed by claimants in the office of the secretary of veterans’ services or records kept by the secretary for reference by the officials of their office, shall not be considered public records for the purposes of this chapter.

SECTION 5. This act shall take effect on January 1, 2027.

QUESTION 2: Full Text of Proposed Law

An Act relative to labor relations policies for committee for public counsel services employees.

Be it enacted by the People, and by their authority;

SECTION 1: Section 1 of chapter 150E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding to the end of the seventh paragraph, titled “Employer” or “public employer”, the following sentence: “In the case of employees of the committee for public counsel services, employer shall mean the committee for public counsel services or its designee.”

SECTION 2. Section 7 of said chapter 150E of the General Laws, as so appearing, is hereby amended by striking the word “or” before the phrase “the state lottery commission” in line 16 and adding the following words after that phrase: “or the committee for public counsel services.”

SECTION 3. Said section 7 of said chapter 150E of the General Laws, as so appearing, is hereby amended by striking the word “and” before the words “the state lottery commission” appearing in line 34 and inserting after the word “commission” in line 35 the following words: “and committee for public counsel services.”

QUESTION 3: Full Text of Proposed Law

An Act to implement all-party state primaries.

Be it enacted by the People, and by their authority;

SECTION 1. Section 1 of Chapter 50 of the General Laws is hereby amended by amending the definition of “Political party” therein by inserting after the phrase “to a party which at” in the first sentence thereof the phrase “the latest state primary held prior to”, and by striking the second sentence thereof in its entirety.

SECTION 2. Chapter 50 of the General laws is hereby amended by inserting after Section 2 the following Section 2A:-

Section 2A. In state primaries held in accordance with sections forty-one to fifty-three A, inclusive, of chapter fifty-three, the two persons receiving the highest number of votes for an office shall be deemed nominated for election to such office and shall be the only persons whose names shall be printed on the ballot for such office at the next proceeding state election.